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Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N14
HON. JULIANNE SARTAIN BANCROFT

Date: Monday, July 6, 2026, 9:00 a.m.

- All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Check-in instructions and an instructional video are available on the court’s website. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the initial appearance. All hearings are open to the public. The courtroom doors are open.
- You must provide your own court reporter (unless you have a fee waiver and request one in advance).
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, then call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk. The court will hold a hearing. The court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative Ruling
101	Abdo v. Five Boys Investments, Inc. 2023-01342111	Defendants, JJ Properties and Investments, LLC (“JJ Properties”), James McGee (“McGee”), and Osvaldo Santa Ana (“Santa Ana”) (collectively, “JJ Properties Defendants”), move for summary judgment in favor of JJ Properties Defendants against Plaintiff, Wael Abdo, on all causes of action in his operative complaint in Abdo v. JJ Properties and Investments, LLC, et al. Orange County Superior Court Case No. 30-2024-01450875-CU-FR-NJC (“JJ Properties” Action). The Motion for Summary Judgment is GRANTED. Order and Judgment to be prepared by JJ Properties Defendants. A defendant moving for summary judgment or summary adjudication has met his or her burden of showing that a cause of action has no merit if he or she shows one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. (Code Civ. Proc. § 437c(p)(2).) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense. (Ibid.) A plaintiff must set forth specific facts showing that a triable issue of material fact exists as to a cause of action or a defense thereto. (Ibid.) A cause of action has no merit if either (1) one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded; or (2) a defendant establishes an affirmative defense to that cause of action. (Code Civ. Proc. § 437c(o).) “A summary judgment may be granted only where it is shown that the entire ‘action’ ‘has no merit.’ [Citation.]” (Hypertouch, Inc. v. ValueClick, Inc. (2011) 192 Cal.App.4th 805, 834.) The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 849-850.)

In determining a motion for summary judgment, the court is “required to view the evidence and the reasonable inferences therefrom in the light most favorable to the party opposing the summary judgment motion; doubts as to whether there are any triable issues must be resolved in favor of the opposing party; and equally conflicting evidence or inferences require denial of a summary judgment motion.” (Essex Ins. Co. v. Heck (2010) 186 Cal.App.4th 1513, 1522.) Declarations provided in opposition to motions for summary judgment or summary adjudication are liberally construed while the moving party’s evidence is strictly construed. (Saelzler v. Advanced Group 400 (2001) 25 Cal.4th 763, 768.)

The JJ Properties Defendants contend that Plaintiff’s action against them is barred based on the Settlement Agreement entered in the in the action filed by Plaintiff in 2023 against Five Boys Investments, Inc., McGee, Santa Ana, and others (the “Five Boys Action”). The JJ Properties Defendants assert that the Settlement Agreement releases all Defendants in the JJ Properties Action from all claims therein, that those being released include Five Boys, McGee, Santa Ana, that JJ Properties is an express assign of Five Boys, and that based on the common ownership interest between JJ Properties and Five Boys, JJ Properties is an affiliated company of Five Boys.

Plaintiff contends that JJ Properties cannot enforce the Settlement Agreement because it was not a party to the Settlement Agreement, and that JJ Properties is not a third party beneficiary of the Settlement Agreement.

“A settlement agreement is a contract, and the legal principles which apply to contracts generally apply to settlement contracts. [Citation.]” (Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 810-811.) The JJ Properties Defendants therefore have “the burden of establishing each contractual element— parties who are capable of entering into contract, their mutual consent, a lawful object, and sufficient cause or consideration. [citations]—in support of their motion.”

(Steward v. Preston Pipeline Inc. (2005) 134 Cal.App.4th 1565, 1585-1586.) A general release can be completely enforceable and act as a complete bar to all claims (known or unknown at the time of the release). (San Diego Hospice v. County of San Diego (1995) 31 Cal.App.4th 1048, 1053.)

“When a contract is reduced to writing, the intention of the parties is to be ascertained from the writing alone, if possible;” (Civil Code § 1639.) “Under California law, contracts are interpreted by an objective standard; the words of the contract control, not one party’s subjective intentions. (Brant v. California Dairies, Inc. (1935) 4 Cal.2d 128, 133.)” (Global Packaging v. Superior Court (2011) 196 Cal.App.4th 1623, 1234.) “An interpretation which gives effect is preferred to one which makes void.” (Civil Code § 3541.)

“Subject to the other rules of interpretation, the language of a contract governs its interpretation if the language is clear and explicit and does not involve an absurdity. (Civ.Code, §§ 1638, 1639.) The whole contract must be considered together in order to ‘give effect to every part, if reasonably practicable, each clause helping to interpret the other.’ (§ 1641.)” (Supervalu, Inc. v. Wexford Underwriting Managers, Inc. (2009) 175 Cal.App.4th 64, 72.) If it may be done without violating the parties’ intent, we must interpret the contract in such a way as to make it “lawful, operative, definite, reasonable, and capable of being carried into effect.” (Civil Code § 1643.) “The words of a contract are to be understood in their ordinary and popular sense, rather than according to their strict legal meaning;” (Civil Code § 1644.)

Here, it is undisputed that Plaintiff entered into a Settlement Agreement with Five Boys, McGee, and Santa Ana. (Plaintiff’s Separate Statement of Material Facts (“PSS”), 9.) The Settlement Agreement was executed in parts in December 2023 and January 2024, and it itself demonstrates each element of the contract as it identifies the parties, facially evidences mutual consent, has the lawful object of resolving litigation, and contains mutual promises and consideration. (See Ex. F to Declaration of James McGee (“McGee Decl.”), Settlement Agreement.) The Settlement Agreement

settled Plaintiff's Complaint against Five Boys, First Team Real Estate, Paul Bontempo, James McGee (Doe #1), Osvaldo Santa Ana (Doe #2), and Isaias Tercero Garcia (aka Isaias Crisosto Tercero) (Doe #3), filed in case number, 30-2023-01342111-CU-CO-CJC, concerning a contract for sale of residential property located at 228 20th St. Huntington Beach, CA (the "Huntington Beach Property") and the alleged discovery after close of escrow of construction problems at the Huntington Beach Property that were not disclosed and could not be easily remedied. (Ex. F to McGee Decl., Settlement Agreement, at pp. 1-2, ¶¶ 1-3(A)-(D).)

The Settlement Agreement contains a Mutual Release which states, in part: "Complainant [Plaintiff, Wael Abdo], on behalf of himself and his heirs, hereby releases and forever discharges all Defendants, and their parents, subsidiaries, franchisors, franchisees, affiliated companies, and each of their former and present agents, directors, officers, shareholders, employees, attorneys, and insurers, as well as their heirs and assigns (collectively "Releasees"), from any and all claims of any nature whatsoever, whether known or unknown and whether before a court or an arbitrator, which include but are not limited to, any and all claims between Complainant and Releasees in regards to Case: 30-2023-01342111-CU-CO-CJC and any other statutory or non-statutory tort or contractual claim; any claim of a violation of any federal, state, municipal, or local statute, ordinance, or regulation pertaining to the cause of the action (the "Claims"); that Complainant has and may hereafter have against Releasees because of any alleged fault, violations, breach, acts or omissions whatsoever from the beginning of time to the date of the execution of this Agreement." (Ex. F to McGee Decl., Settlement Agreement, at p. 7, § B.)

In addition, the Settlement Agreement contains a Section 1542 Waiver which states, "By signing this Agreement, the Parties acknowledges that they have read and fully comprehend Section 1542 of the California Civil Code, which reads as follows: "A general release does not extend to claims which the creditor does not know or suspect to exist in his or her favor at the

time of executing the release, which if known by him or her must have materially affected his or her settlement with the debtor." The Parties waive all rights under California Civil Code Section 1542." (Ex. F to McGee Decl., Settlement Agreement, at p. 8.)

Initially, the JJ Properties Action asserts causes of action for declaratory relief, cancellation of written instrument and rescission of October Escrow Instructions, November Note and its Deeds of Trust, slander of title, quiet title, fraud, injunctive relief, violation of Business & Professions Code section 17200, and accounting based on allegations of violations, breaches, and/or wrongful acts by the JJ Properties Defendants relating to, and in connection with, Plaintiff's purchase of the Huntington Beach Property in 2022 and a carryback purchase money loan, that predate the execution of the Settlement Agreement, i.e., December 2023 and January 2024. (Ex. K to Declaration of John Schroeder, FAC, ¶¶ 7, 10-16, 18-28, 32.)

Plaintiff does not dispute that McGee and Santa Ana are parties to the Settlement Agreement in the Five Boys Action. In turn, any release contained therein applies to them and they may enforce the release provision in the Settlement Agreement.

As to JJ Properties, it is undisputed that in purchasing the Huntington Beach Property, Plaintiff obtained a conventional loan for most of the purchase cost with a carryback loan of \$575,000 secured by the Huntington Beach Property. (PSS, 3.) It is also undisputed that on November 11, 2022, Five Boys assigned the note to JJ Properties. (PSS, 4.) Plaintiff does not unequivocally dispute these facts and the recitation of facts in response to these facts does not address the fact being asserted. As to PSS 4, while Plaintiff states that he did not sign any contract or orally agree to assign any note for \$575,000 from Five Boys to JJ Properties, he does not argue or show that any such assignment required his consent. These undisputed facts support that JJ Properties is an assign of Five Boys, and as an assign is expressly listed as a party to which the release applies, JJ Properties may enforce a release provision in the

Settlement Agreement, despite the fact that it is not signatory to the Settlement Agreement.

As to the additional argument that JJ Properties is an “affiliated company” of Five Boys, JJ Properties cites to no authority and does not discuss the meaning or definition of “affiliated company” within the context of the Settlement Agreement, as well as cites to no authority supporting that an “affiliated company” may be established solely by common ownership. This being said, there is authority which has looked to dictionary definitions of an “affiliate” or “affiliated company” noting that it includes the notion of shared ownership or control. (Toothman v. Redwood Toxicology Laboratory, Inc. (2026) 120 Cal.App.5th 412, 422.) It is undisputed that McGee and Santa Ana have been the sole Members and Managers of JJ Properties, and that McGee has been a shareholder and sole Officer of Five Boys. (PSS, 17-18.) This evidence of shared control tends to support that JJ Properties is an “affiliated company” of Five Boys, such that it may raise the defense of the release in the Settlement Agreement.

The opposition raises arguments not raised by the moving papers, and that do not directly address the arguments raised. In opposition, Plaintiff argues that JJ Properties is not a third party beneficiary of the Settlement, but the motion does not argue that JJ Properties is a third-party beneficiary. While the reply argues that they may enforce the release because it is also a third-party beneficiary, the workup does not address this argument given the determinations above that JJ Properties is an “assign” and “affiliated company,” and thus, may enforce the release.

Additionally, the JJ Properties Defendants contend that Defendants complied with the Settlement Agreement by making the required corrections and by obtaining approval from the City of Huntington Beach.

Plaintiff contends that they dispute that Defendants have performed their obligations and duties under the Settlement Agreement, and asserts that there are genuine issues of material facts with respect to the

alleged breaches under the Settlement Agreement as Five Boys itself breached the Settlement Agreement by failing to repair and rebuild the numerous violations cited by the City of Huntington Beach which was a condition precedent to Plaintiff's obligations under the Settlement Agreement.

A breach of a settlement agreement terminates the agreement, including the releases. (Butler America, LLC v. Aviation Assurance Co., LLC (2020) 55 Cal.App.5th 136, 142.)

Here, the Settlement Agreement provides, in relevant part: "Within sixty (60) days of the expiration of the Tenancy Period, Defendants will repair and/or rebuild those previous violations cited by city inspectors, as listed in Exhibit A hereto, such that those violations will pass all reasonable building inspections and other construction-related mandates required at the Huntington Beach Property by the City of Huntington Beach, as applicable. Other than the foregoing, Defendants are not required to fix or remedy any other construction related mandates or violations required at the Huntington Beach Property. Such repair and/or rebuilding of the Huntington Beach Property by Defendants shall constitute a condition precedent to Defendants' obligations as set forth in this Agreement." (Ex. F to McGee Decl., Settlement Agreement, at p. 3, §A(4).) Exhibit A attached to the Settlement Agreement sets forth the "City Violations to be Repaired" as "1. The internal stairwell. 2. The six (6) foot exterior wall. 3. The final signoff on the roof." (Id. at p. 11.)

The JJ Properties Defendants assert as a material fact that "Defendants complied with the Settlement Agreement by making the required corrections and obtaining approval from the City of Huntington Beach." (JJ Properties Defendants Separate Statement of Material Facts, 13, Declaration of James McGee, ¶ 9, Ex. G.) More specifically, McGee states that McGee personally observed Isaias Garcia, a California licensed general contractor, and his crew make each of the repairs required by the Settlement Agreement, and that they received signoffs by the City of Huntington Beach

for those repairs in June 2024, which are attached as Exhibit G. (Ibid.) If the Court sustains the objection to Exhibit G, as recommended above, and does not consider the “signoffs” attached as Exhibit G, McGee’s declaration appears sufficient to establish that JJ Properties received signoffs by the City of Huntington Beach for the repairs required by the Settlement Agreement.

Plaintiff does not state whether this fact is “disputed” or “undisputed” nor does Plaintiff state the nature of any dispute as required by California Rules of Court, rule 3.1350(f). To the extent that Plaintiff asserts that the Five Boys or the JJ Properties Defendants breached the Settlement Agreement by failing to repair and/or rebuild the previous violations cited by city inspectors as listed in Exhibit A, Plaintiff fails to present any facts or evidence to support that Defendants did not repair and/or rebuild those specific previous violations as listed in Exhibit A to the Settlement Agreement such that these violations would pass all reasonable building inspections and other construction-related mandates required at the Huntington Beach Property by the City of Huntington Beach. The Settlement Agreement does not provide for repairs and/or rebuild of any and all violations, but specified three violations concerning the internal stairwell, the six (6) foot exterior wall, and the roof. Instead of addressing the specific violations listed in Exhibit A to the Settlement Agreement, Plaintiff argues that there were many violations of various building and safety codes due the illegal conversion, that Five Boys failed to obtain approval for a permit it applied for, and that the City of Huntington Beach denied a permit based on the fact that the “scope of work on permit does not reflect work done,” citing to Exhibits A through C to Plaintiff’s declaration, and Plaintiff does not establish that any of these violations, or denied or lack of permits, relate to or concern the specific work listed in Exhibit A to the Settlement Agreement, i.e., internal stairwell, the six (6) foot exterior wall, or the roof and/or repair and/or rebuilds done after January 2024, when the Settlement Agreement was fully executed. (Declaration of Wael N. Abdo, ¶¶ 11-16, Exs. A-C.) As such, Plaintiff fails to create a triable issue of fact as to whether the Settlement Agreement was

breached. A plaintiff must set forth specific facts showing that a triable issue of material fact exists as to a cause of action or a defense thereto. (Code Civ. Proc. § 437c(p)(2).) To defeat summary judgment, a plaintiff must show specific facts. (Roman v. BRE Properties, Inc. (2015) 237 Cal.App.4th 1040, 1054.) “ ‘An issue of fact can only be created by a conflict of evidence. It is not created by “speculation, conjecture, imagination, or guess work.” [Citation.] Further, an issue of fact is not raised by “cryptic, broadly phrased, and conclusory assertions” [citation], or mere possibilities [citation.] “Thus, while the court in determining a motion for summary judgment does not ‘try’ the case, the court is bound to consider the competency of the evidence presented.” [Citation.]’ [Citation.]” (Brown v. Ransweiler (2009) 171 Cal.App.4th 516, 525-526.) To defeat summary judgment, a plaintiff cannot rely on assertions that are “ ‘conclusionary, argumentative, or based on conjecture and speculation,’ but rather [are] required to ‘make an independent showing by a proper declaration or by reference to a deposition or another discovery product that there is sufficient proof of the matters alleged to raise a triable question of fact’ [Citation.]” (Roberts v. Assurance Co. of America (2008) 163 Cal.App.4th 1398, 1404.)

Based on the foregoing, the JJ Properties Defendants meet their burden to show that they may enforce the release in the Settlement Agreement and that the obligation to make certain specified repairs and/or rebuilds under the Settlement Agreement has been satisfied such that the release in the Settlement Agreement bars the JJ Properties Action. Plaintiff fails to create a triable issue of material fact as to the applicability of the release.

The court has not considered the JJ Properties Defendants’ response to plaintiff’s separate statement of material facts (ROA #515) as there is no provision in CCP 437c for a reply separate statement. (Nazir v. United Airlines, Inc. (2009) 178 Cal.App.4th 243, 252.)

The court will SUSTAIN Plaintiff’s evidentiary objections 1 and 13 (as to Exhibit G). The court

OVERRULES Plaintiff's evidentiary objections 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13 (as to the statement in the declaration), 15, 17, 18, and 19. The court declines to rule on objection Nos. 14 and 16, as the evidentiary matters are not material to the determination of the motion. (ROA # 500)

The court will OVERRULE all of the JJ Properties Defendants' evidentiary objections. (ROA # 513)

The court GRANTS both parties' requests for judicial notice. (ROA #452, #506)

The court rejects Plaintiff's argument that the JJ Properties Defendants have failed to provide any documentary evidence that Plaintiff cannot prove any of his eight causes of action in the First Amended Complaint ("FAC"), and that the Motion does not address any of the causes of action. A defendant moving for summary judgment or summary adjudication has met his or her burden of showing that a cause of action has no merit if he or she shows one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. (Code Civ. Proc. § 437c(p)(2).) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense. (Ibid.) Here, the JJ Properties Defendants argue that the JJ Properties Action is barred based on a prior Settlement Agreement, and therefore argue that there is a complete defense as to all eight causes of action.

The court also rejects Plaintiff's argument that the notice of motion is defective because it is devoid of any reference to the FAC's causes of action and claims for damages, affirmative defenses, or issues of duty as required by California Rules of Court, rule 3.1350(b), and thus, that the Motion is not properly before the Court and must be denied. That rule of court applies to a motion for summary adjudication. Here, the JJ Properties Defendants have moved only for summary judgment, and do not alternatively move for summary

adjudication. Thus, the motion for summary judgment is properly brought.

The court also rejects Plaintiff's argument that this motion for summary judgment is an invalid motion for reconsideration, as this is the fourth time that the motion has been filed in an attempt to enforce the Settlement Agreement, and that this motion fails to comply with the requirements of Code of Civil Procedure section 1008(a).

"When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that the made the order, to reconsider the matter and modify, amend, or revoke the prior order." (Code Civ. Proc. § 1008(a).)

This is not a motion to enforce the Settlement Agreement, and this is the first motion for summary judgment filed in this case. The Court has not previously considered the issue of whether a release in the Settlement Agreement in Plaintiff's action filed in 2023 against Five Boys Investments, Inc. ("Five Boys"), Defendants McGee and Santa Ana, and others ("Five Boys Action") bars the instant action Plaintiff in 2024 against the JJ Properties Defendants. Therefore, Plaintiff's argument that the instant motion for summary judgment is a motion for reconsideration of a prior motion to enforce Settlement Agreement is unpersuasive and lacks merit.

Plaintiff's separate statement does not comply with California Rules of Court, rule 3.1350(f). The court has not replied on this procedural failure in reaching its decision on the merits of the motion.

102	Afakori v. Balfour Beatty Construction LLC 2025-01511251	DEMURRER TO COMPLAINT – OVERRULED Plaintiff Afakori Inc. dba AAF Steel Structural (“Plaintiff”) sued Defendant Balfour Beatty Construction, LLC (“Defendant”) for breach of a construction subcontract. (ROA #2) Defendant demurs to the complaint on the grounds that (1) Plaintiff lacks standing to assert the causes of action alleged and (2) judicial estoppel bars the causes of action. In 2024, Plaintiff filed Chapter 11 bankruptcy. Defendant contends the claims asserted in this case were never identified as assets in the BK matter and were never abandoned by the BK trustee, meaning the BK trustee is the proper plaintiff in this case. “ ‘As a general matter, upon the filing of a petition for bankruptcy, “all legal or equitable interests of the debtor in property” become the property of the bankruptcy estate and will be distributed to the debtor’s creditors. [Citation].’ ” (M & M Foods, Inc. v. Pacific American Fish Co., Inc. (2011) 196 Cal.App.4th 554, 561.) “ ‘In the context of bankruptcy proceedings, it is well understood that “a trustee, as the representative of the bankruptcy estate, is the real party in interest, and is the only party with standing to prosecute causes of action belonging to the estate once the bankruptcy petition has been filed.” [Citation].’ ” (Id. at p. 562.) “ ‘An outstanding legal claim that is abandoned by the trustee reverts back to the original debtor-plaintiff.’ ” (Id. at p. 563.) “But property not formally scheduled in the bankruptcy proceeding is not abandoned at the close of the bankruptcy proceeding, even if the trustee was aware of the existence of the property.” (Ibid.) “Although there are ‘no bright-line rules for how much itemization and specificity is required,’ [the debtor] was required to be as particular as is reasonable under the circumstances.” (Id. at p. 564.) In M & M Foods, M & M’s asset disclosure referenced M & M’s personal property as including “interest in collections obtained on outstanding accounts receivable from former business activities.” The court held that M & M had no standing to assert its causes of action for
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\$700,000 accounts receivable because its “asset disclosure schedule did not mention Pacific American, M & M, or the asset purchase agreement, much less the accounts receivable Pacific American was obligated to collect on behalf of M & M under that agreement.” (Ibid.)

The present case is factually distinguishable. The summary of assets and liabilities identifies an account receivable over 90 days old in the face amount of \$715,625. (ROA #19, ex. 2) This is sufficient. Although Defendant argues “The schedules did not identify Balfour Beatty, the Project, the Subcontract, the alleged escalation amounts, any disputed contract balance, or any contingent, unliquidated, or disputed right to payment tied to the Project. Nor did the schedules list any pending or potential litigation, breach of contract claim, or account receivable traceable to Balfour Beatty.” (ROA #21 p. 5) The preprinted US government form, however, does not require such detail (nor does it provide space for such detail or invite attachments where such detail might be included. (See Cusano v. Klein (9th Cir. 2001) 264 F.3d 936.)

The court finds Defendant has not established Plaintiff’s lack of standing.

Defendant argues that Plaintiff is judicially estopped from pursuing its claims against Defendant because its failure to disclose any dispute with Defendant is directly inconsistent with its position in this litigation.

Plaintiff argues that judicial estoppel does not apply because there was no plan or discharge in the bankruptcy action and there is no evidence that Plaintiff acted in bad faith.

“Judicial estoppel . . . ‘applies to preclude a party from assuming a position in a legal proceeding inconsistent with one previously asserted[.]’ ” (Hamilton v. Greenwich Investors XXVI, LLC (2011) 195 Cal.App.4th 1602, 1609.) Defendant argues that Plaintiff took directly inconsistent positions in its bankruptcy case and in this litigation by not disclosing any dispute with Defendant, contingent or unliquidated claims arising

		from the subcontract, any accounts receivable tied to the project, or any potential litigation rights whatsoever. As with above, this argument fails because the Court finds that Plaintiff provided sufficient specificity regarding the accounts receivable related to Defendant. Defendant to file an answer to the complaint within 20 days. Defendant to give notice.
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104	Esteban v. Urth Payroll Services, 2025-01511289	DEFENDANT URTH PAYROLL SERVICES' MOTION TO COMPEL ARBITRATION – GRANTED DEFENDANT VASQUEZ'S MOTION TO JOIN MOTION TO COMPEL ARBITRATION – GRANTED Plaintiff Alejandro Esteban was employed by Defendant Urth as a barista, busboy, and food server. Defendant Vasquez is employed in the human resources department by Urth. Plaintiff alleges discrimination claims under FEHA, as well as wage and hour violations. On January 13, 2023, Esteban signed an arbitration agreement (which was provided to him in English and Spanish). Defendants contend this court should compel arbitration of Esteban's claims based on the arbitration agreement. On a motion to compel arbitration, the court's role is limited to deciding: "(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute." (Brennan v. Opus Bank (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; Dean Witter Reynolds, Inc. v. Byrd (1985) 470 U.S. 213, 218 ["By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to
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arbitration.”].) “[T]he party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration.” (Green Tree Fin. Corp. v. Randolph (2000) 531 U.S. 79, 91.)

Defendants have met their prima facie burden of establishing the existence of an arbitration agreement. (Vera Decl., ¶¶ 13-16, Ex. 1)

“If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. [Citation.]” (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.) “To bear this burden, the arbitration opponent must offer admissible evidence creating a factual dispute as the authenticity of their signatures.” (Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747,755.)

In opposition to this Motion, Plaintiff submits his Declaration wherein he states (as relevant to this motion): “3. My first language is Spanish. I am not fluent in English. I reviewed the purported MUTUAL AGREEMENT TO MEDIATE/ ARBITRATE (Hereinafter “Disputed Arbitration”) a true and correct copy is attached as Exhibit 1. [¶] 4. I was not offered arbitration. [¶] 5. I did not agree to arbitration.[¶] 12. After 2022 and 2023, the electronic documents were presented during busy working hours and repeatedly we were told that If we do not sign documents electronically on the spot, we would be terminated. [¶] 13. I do not agree to waive court rights. I do not agree to the arbitration.” (Esteban Decl.)

Here, Mr. Estaban’s declaration is somewhat vague, confusing and contradictory. He does not equivocally state that he never saw the agreement. He states he was not offered arbitration. Perhaps this is the same thing. He indicates he does not speak English, but Defendant’s evidence establishes the agreement was in English and in Spanish. Curiously, he seems to admit to signing documents in 2022 and 2023, but does not suggest what they were—he suggests he was forced to execute the

electronic documents. He also suggests that the agreement was both forged and forced.

Assuming for purposes of this motion that this evidence creates a factual dispute and shifts the burden back to Defendants to authenticate Plaintiff's signature, the court finds Defendants have done so.

Defendant submitted declarations detailing the TalentReef electronic signature process used to distribute the agreement and obtain Plaintiff's signature, including the requirement that employees complete a two-factor authentication and affirmatively execute documents. [See Vera Decl. ¶¶ 7-13; Dubrey Decl. ¶¶ 6-12; Ex. 1]. This evidence is further confirmed by the Declaration of Jacqueline Vasquez, who was employed in Human Resources during the relevant time period and is familiar with the TalentReef system and onboarding procedures in place when Plaintiff executed the MAAC. [Vasquez Decl., ¶¶ 6-8].

Specifically, Ms. Vasquez explains the process as: the employee would receive an email indicating they had a "task" to complete. The email notification included a link directing employees to the TalentReef platform. Declaration of Vera Ex. 2 establishes what the email would look like. Notably, it does not indicate the specific task or that it was an arbitration agreement. Thereafter, to access TalentReef required a two-factor authentication process. Ms. Vasquez further explains, "...employees were directed to a list of outstanding documents requiring review and acknowledgment. Each document required employees to access it individually. In order to electronically sign a document, employees were required to review the document and then scroll to the signature portion, where employees were required to affirmatively indicate agreement to the electronic signature process. The system required employees to type "agree" to confirm they understood and accepted that the electronic signature would be treated the same as a handwritten signature. The system would then record the employee's electronic signature along with a date and time stamp. During the relevant time period, documents made available through TalentReef,

including the MAAC were provided in English and Spanish and employees were required to review each policy document in both languages before being able to input their electronic signature on the document.” (Dec. ¶8) Vasquez advises that there was no mechanism for HR to access the employee’s account and complete the signature process. (Id. ¶9.)

Based on the foregoing, the court finds there was an agreement to arbitrate between the parties. The court further finds the agreement covers the claims raised by the plaintiff. “Covered Claims include, but are not limited to: any claim for breach of contract, fraud, harassment, discrimination, retaliation, wrongful termination, unfair competition, violation of public policy, any tort claims, and any claims for violation of any provision of the Labor Code or Wage Orders, including claims for unpaid compensations, fees, wages, expenses, overtime, penalties, and liquidated damages. Covered Claims also include, but are not limited to, claims brought under any of the following laws: any claims arising under the Age Discrimination in Employment Act of 1967, Fair Labor Standards Act, Americans with Disabilities Act, Rehabilitation Act, Title VII of the Civil Rights Act of 1964, Employee Retirement Income Security Act, National Labor Relations Act, Family and Medical Leave Act, Worker Adjustment and Retraining Notification Act, California Labor Code, California Corporations Code, California Business and Professions Code, California Fair Employment and Housing Act, California Worker Adjustment and Retraining Notification Act, California Workers’ Compensation Act, California Family Rights Act, Unruh Act, California Constitution, (all as amended), or any applicable similar laws, to the full extent permitted by law.” (Dubrey Decl., ex. 1)

Plaintiff fails to establish procedural or substantive unconscionability. As to procedural unconscionability, Plaintiff merely argues, “Here, there was not even an onboarding process with Plaintiff or with any of the employees.” (Opp p. 14:3-4.) As to substantive unconscionability, Plaintiff merely argues, “In this case, although no evidence was ever introduced to verify the

signature's authenticity, it was never challenged.” (Opp p. 14: 9-10)

Plaintiff argues that because of the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act (“EFAA”), he cannot be compelled to arbitration.

“Notwithstanding any other provision of this title, at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, or the named representative of a class or in a collective action alleging such conduct, no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.” (9 U.S.C. § 402(a))

To bring the EFAA into play, Plaintiff must plead a plausible sexual harassment claim. (See Motion’s p. 16:3, citing *Yost v. Everyrealm, Inc.*, 657 F. Supp. 3d 563 and Opp. at p. 11: 19-20 citing *Johnson v. Everyrealm, Inc.* (S.D.N.Y. Feb. 24, 2023) 2023 U.S.Dist.LEXIS 31242 at **3, 26-28.)

Plaintiff’s 107-page complaint pleads fifteen causes of action, but repeats the same facts/theories for each cause of action.

In the 11th cause of action for Harassment, Plaintiff pleads: “The Defendant Supervisor was a male oriented to the same sex. Plaintiff is a male oriented to the opposite sex. Defendant Supervisor favored employees who were male and oriented to the same sex just like Defendant Supervisor. Plaintiff was discriminated, excluded, and subjected to unlawful action because he was not like Defendant Supervisor based on his sexual orientation.” (complaint, p. 72:4-8)

Plaintiff is suggesting he was discriminated against because of his sexual orientation, not that he was harassed. the harassment causes of action do not appear plausible, and the EFAA is not a bar to arbitration.

		While defendant Vasquez is not a signatory on the agreement, she argues the agreement, by its terms, extends to employees of Urth Caffé, of which she is one. (Boucher v. Alliance Title (2005) 127 Cal.App.4th 262, 271 [“a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff to arbitrate its claims when the causes of action against the nonsignatory are ‘intimately founded in and intertwined’ with the underlying contract obligations.”].)
105	Guinoo v. Crisostomo 2021-01224958	A Notice of Stay due to bankruptcy of Defendant Bryan Crisostomo was filed with the court. This is the second time Defendant Bryan Crisostomo has filed a notice of stay due to bankruptcy proceedings. The motion to enforce settlement Agreement and appoint a partition referee will be continued, as required by law. Counsel and any unrepresented parties shall appear at the scheduled hearing time to discuss a continued date for the hearing on these motions.
106	Jarvis Restoration v. Mercury Insurance Services 2026-01546848	DEMURRER TO SECOND CAUSE OF ACTION – OVERRULED MOTION TO STRIKE PUNITIVE DAMAGES CLAIM – GRANTED Defendant Mercury Insurance Services (“Defendant”) filed a demurrer and motion to strike. In the demurrer, Defendant demurs to the second cause of action for bad faith. In the motion to strike, Defendant moves to strike Plaintiff’s claim for punitive damages. Plaintiff Jarvis Restoration, LLC (“Plaintiff”) opposed both motions. <u>DEMURRER</u> As stated in Chateau Chamberay Homeowners Ass’n v. Associated Intern. Ins. Co. (2001) 90 Cal.App.4th 335, 345, as modified on denial of reh’g (July 30, 2001): “[B]efore an insurer can be found to have acted tortiously (i.e., in bad faith), for its delay or denial in the payment of policy benefits, it must be shown that the insurer acted unreasonably or without proper cause.” (Chateau Chamberay Homeowners Ass’n v. Associated Intern. Ins. Co. (2001) 90 Cal.App.4th 335, 347.) “It is now settled law in California that an insurer denying or delaying the payment of policy benefits due

to the existence of a genuine dispute with its insured as to the existence of coverage liability or the amount of the insured's coverage claim is not liable in bad faith even though it might be liable for breach of contract."

(Chateau Chamberay Homeowners Ass'n v. Associated Intern. Ins. Co. (2001) 90 Cal.App.4th 335, 347, as modified on denial of reh'g (July 30, 2001).)

"[A] court can conclude as a matter of law that an insurer's denial of a claim is not unreasonable, so long as there existed a genuine issue as to the insurer's liability. [Citation.] The 'genuine dispute' doctrine may be applied where the insurer denies a claim based on the opinions of experts." (Chateau Chamberay Homeowners Ass'n v. Associated Intern. Ins. Co. (2001) 90 Cal.App.4th 335, 347, as modified on denial of reh'g (July 30, 2001).)

"While many, if not most, of the cases finding a genuine dispute over an insurer's coverage liability have involved legal rather than factual disputes, we see no reason why the genuine dispute doctrine should be limited to legal issues. [Citations.] That does not mean, however, that the genuine dispute doctrine may properly be applied in every case involving purely a factual dispute between an insurer and its insured. This is an issue which should be decided on a case-by-case basis. [¶] . . . [W]here an insurer, for example, is relying on the advice and opinions of independent experts, then a basis may exist for invoking the doctrine and summarily adjudicating a bad faith claim in the insurer's favor. [Citations.] [But] an expert's testimony will not automatically insulate an insurer from a bad faith claim based on a biased investigation." (Chateau Chamberay Homeowners Ass'n v. Associated Intern. Ins. Co. (2001) 90 Cal.App.4th 335, 348.)

Here, the Court finds that the allegations in the Complaint sufficiently state a cause of action for bad faith at this stage of the litigation. In particular, the Court finds the allegations in paragraphs 48-51 establish the requisite unreasonableness and improper cause in denying the insurance claims at issue in the Complaint.

		<u>MOTION TO STRIKE</u> Defendant moves to strike Plaintiff's claim for punitive damages. Defendant argues Plaintiff has not alleged the requisite "deliberate, wanton, malicious, wreckful, or willful acts of Defendant" to establish that Plaintiff is entitled to punitive damages. Plaintiff argues that it is not required to prove its punitive damages claim in the complaint and is only required "to allege the ultimate facts upon which that claim rests," which have been alleged. Plaintiff points to paragraphs 16–21, 48, 50 of the Complaint. The Court agrees with Defendant. The Complaint does not state sufficient facts to support a claim for punitive damages against a corporate defendant. (Cruz v. HomeBase (2000) 83 Cal.App.4th 160, 167-168.) The Motion to Strike is GRANTED WITH LEAVE TO AMEND. Defendant to give notice.
107	Jban, LLC v. Carrows California Family Restaurants, LLC, 2024-01371072	Plaintiff Jban, LLC's unopposed Motion for Leave to file a First Amended Complaint is granted pursuant to Code of Civil Procedure §473 and Cal. Rules of Court, Rule 3.1324. The proposed First Amended Complaint should be separately filed and served pursuant to code. Plaintiff to give notice.
108	Leaf Capital Funding v. Strada Collision Centers, 2025-01534127	Plaintiff Leaf Capital Funding, LLC moves for writs of possession against defendants Strada Collision Centers, Inc. and Hamid Hojati for the subject equipment, a 2024 Stealth 350 Down Draft Paint Model RGI-FDD 27 DW. The Court notes that a Default Judgment was entered in plaintiff's favor on April 8, 2026, wherein the Court found that plaintiff shall obtain possession of the 2024 Stealth 350 Down Draft Paint Model RGI-FDD 27 DW, Serial Number 632201. As a writ of possession is a prejudgment remedy and judgment has now been entered against defendants, the applications are DENIED as MOOT. (See Sea Rail Truckloads, Inc. v. Pullman, Inc. (1982) 131 Cal.App.3d 511, 514 ["California's Claim and Delivery law [citations] authorizes the issuance of a pre-judgment writ of

		possession for specific personal property.”]; <i>Simms v. NPCK Enterprises, Inc.</i> (2003) 109 Cal.App.4th 233, 242 [“The claim and delivery law provides a complete prejudgment remedy to recover possession of personal property.”].) Moving party to give notice.
109	Lin v BMW of North America, 2025-01493430	Defendants BMW of North America LLC and BMW Financial Services NA, LLC’s (“Defendants”) Motion for Disqualification of Plaintiff’s Counsel and Plaintiff’s Counsel’s Firm is DENIED. Defendants seek disqualification of Eric McBurney and his firm Tung & Associates. McBurney is no longer with Tung & Associates and has not been associated with them since October 8, 2025. (McBurney Decl. ¶ 7; Tung Decl. ¶ 6.) Defendants contend that McBurney must be disqualified because he previously worked at the law firm that represents Defendants in this action, and that, while at that firm, McBurney represented Defendants in other lemon law cases. Defendants urge that Tung & Associates must also be disqualified because McBurney’s conflict is imputed to the entire firm. Defendants have not presented evidence that McBurney was exposed to information that was material to the representation of Plaintiff in this case. (See <i>Khani v. Ford Motor Co.</i> (2013) 215 Cal.App.4th 916, 922.) Defendants only present the declaration of the principal attorney at Defendants’ counsel’s law firm, Abtin Amir. Amir generally declares that McBurney was privy to strategy discussions, but does not even identify a single case that McBurney handled while at that firm or any specific individuals from BMW that McBurney communicated with. (See, generally, Amir Decl.) There are no declarations from anyone at BMW. Further, McBurney’s tenure at that firm lasted only six months. (Amir Decl. ¶ 5.) In opposing the motion, Plaintiff provides the declarations of McBurney and his (now former)

		colleagues at Tung & Associates, who testify that McBurney never discussed any strategy with his colleagues, beyond providing an update as to the status of service of the Complaint, the results of the electrical inspection of the subject vehicle, and a summary of his conversations with Plaintiff. (See generally, McBurney Decl, Tung Decl., Yots Decl., Chen Decl., Wang Decl.) Moving Parties to give notice.
110	Lober v Lober, 2026-01541707	Defendants Dona Lee Lober and Lonnie Kocontes separately demur to the First Amended Complaint (FAC) of plaintiff John T. Lober Jr. Plaintiff did not file opposition to either demurrer. For the reasons set forth below the demurrer is SUSTAINED with 20 days leave to amend. <u>Fraud in the Execution</u> The FAC fails to allege what specific representation was made, when or where it was made, how it was communicated, that the person making the statement knew it was false at the time it was made and intended for John to rely upon the statement, or how his reliance was reasonable or justified. It is not clear whether John actually intends to allege a fraud cause of action, making this cause of action uncertain. (See Hotels Nevada v. L.A. Pacific Center, Inc. (2006) 144 Cal.App.4th 754, 765 [“[f]raud in the execution . . . occurs when ‘ “the promisor is deceived as to the nature of his act, and actually does not know what he is signing, or does not intend to enter into a contract at all . . . and it is void.””].) <u>Financial Elder Abuse</u> This cause of action fails because it does not allege Plaintiff was 65 years or older in 1996, when the alleged abuse occurred. Financial abuse of an action occurs when a person takes or obtains real property of an elder for a wrongful use or with intent to defraud. (Welf. & Inst. Code, § 15610.30(a)(1).) For purposes of the statute, “a person or entity takes, secretes, appropriates, obtains, or retains real or personal property when an elder [] is deprived of any property right[.]” (Id., § 15610.30(c).) “Elder” refers

to any person residing in the state of California who is 65 years of age or older. (Id., § 15610.27.)

The allegation that Dona fraudulently obtained Plaintiff's signature on a grant deed is sufficient to show the taking of real property.

Statute of Limitations

The FAC alleges that the wrongdoing occurred in 1996 and Plaintiff was on notice of his causes of action when his mother sold the property in 1996 and another family moved into the home. The conclusory allegation that Plaintiff did not discover the fraud until January 20, 2026 does not meet the burden of pleading the delayed discovery rule. Rather, Plaintiff must specifically plead facts showing when and how the discovery occurred and why he could not have discovered it sooner by exercising reasonable diligence.

A plaintiff generally must bring a claim within the limitations period after a cause of action accrues, i.e., when the cause of action is complete with all of its elements. (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 806.) "An important exception to the general rule of accrual is the 'discovery rule,' which postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action." (Id. at p. 807.) "A plaintiff has reason to discover a cause of action when he or she 'has reason at least to suspect a factual basis for its elements.'" (Ibid.) "Under the discovery rule, suspicion of one or more of the elements of a cause of action, coupled with knowledge of any remaining elements, will generally trigger the statute of limitations period." (Ibid.)

"In order to rely on the discovery rule for delayed accrual of a cause of action, '[a] plaintiff whose complaint show son its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.'" (Id. at p. 808.) "In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to 'show

		diligence’; ‘conclusory allegations will not withstand demurrer.’” (Ibid.) <u>Failure to Join Indispensable Parties</u> The FAC fails to name the current owners of the property, who are bona fide third party purchasers. Because the FAC seeks a preliminary and permanent injunction preventing the current owners from encumbering the property, those owners are interested parties who must be joined. Further, in a quiet title action, the plaintiff shall name as defendants all persons having adverse claims to the title. (Ranch at the Falls LLC v. O’Neal (2019) 38 Cal.App.5th 155, 172.) “A quiet title judgment cannot be entered in the absence of all parties with an interest in the property at issue.” (Id. at p. 173.) Plaintiff shall have 20 days leave to amend. Counsel for Defendant Dona Lee Lober to give notice.
111	Mana Investment Co. v. Nguyen, 2022-01287145	Shawn M. Olson (“Moving Counsel”) moves to be relieved as Counsel of Record for Defendants, Tony H. Nguyen and Susan Thanh Ngoc Le Nugyen. The motion is unopposed. California Rules of Court, rule 3.1362(d) states, in part: “The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case.” In addition, California Rules of Court, rule 3.1362(e) states, in part: “The proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel--Civil (form MC-053) and must be lodged with the court with the moving papers. The order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order.”

		Moving Counsel has stated a basis for permissive withdrawal under Rules of Professional Conduct, Rule 1.16. (ROA 43, 45, Judicial Council Form MC-052, Declaration in Support of Attorney’s Motion to be Relieved as Counsel, ¶ 2.) Moving Counsel has also utilized the Judicial Council Forms (MC-051, MC-052, and MC-053), and has satisfied the notice and declaration requirements of California Rules of Court, rule 3.1362. However, Moving Counsel has not lodged any proposed orders and has not shown proof of service of the same on the clients and all parties that have appeared in this action. Consequently, the motions to be relieved as counsel are DENIED, without prejudice. Moving Counsel to give notice.
112	Monarch Crest v. Sinai Investment, 2023-01319977	Plaintiff Monarch Crest, LLC (“Plaintiff”) moves pursuant to Code of Civil Procedure section 128.5 for sanctions in the amount of \$9,282.20 “on the grounds that Defendants engaged in frivolous and bad faith actions in filing their second Motion for Summary Judgment or Adjudication months after the deadline to do so had passed and they had failed to obtain or seek leave of court to file a second motion for summary judgment.” Defendants Marguerite Abdelmalek and Evergreen Realty Partners, Inc., dba Realty One Group West (“Defendants”) oppose the motion. First, the Court finds that Plaintiff complied with the 21 day safe harbor period prior to bringing this motion. (Code Civ. Proc., § 128.5, subd. (f)(1)(B).) Next, the Court finds that, while the motion for summary judgment was frivolous given the express terms of the parties’ stipulation, there is insufficient evidence to find that the motion was brought in bad faith. (Campbell v. Cal-Gard Sur. Services, Inc. (1998) 62 Cal.App.4th 563, 573–574 [“To impose sanctions under Code of Civil Procedure section 128.5, there must be a showing that” the moving party’s “action was meritless or frivolous and that it was pursued in bad

		faith.”] and Monex International, Ltd. v. Peinado (1990) 224 Cal.App.3d 1619, 1624–1625.) “A court must balance the necessity of penalizing frivolous conduct against the danger of chilling the diligent pursuit of lawsuits by an attorney for his or her client.” (Monex International, Ltd. v. Peinado (1990) 224 Cal.App.3d 1619, 1624.) “Nonetheless, where a trial court concludes a party’s motion has been brought in bad faith and is frivolous, and sufficient evidence supports that conclusion, the imposition of sanctions will be upheld on appeal.” (Id., 1624–1625.) “To this end, an attorney needs only a reasonable and honest belief in the viability of each theory and the evidence supporting that theory, not a conviction his client will prevail, to justify filing a claim or defense.” (Campbell v. Cal-Gard Sur. Services, Inc. (1998) 62 Cal.App.4th 563, 574–575.) As such, the Motion is DENIED. Plaintiff to give notice.
113	Slater Law Firm v. Shahram Manighalam, 2022-01290340	DEFENDANTS/CROSS-COMPLAINANTS MOTION FOR LEAVE TO FILE FIRST AMENDED CROSS-COMPLAINT – GRANTED Defendants/Cross-Complainants Shahram Manighalam and Shiri Manighalam’s seek leave to file a First Amended Cross-Complaint pursuant to Code of Civil Procedure §§473(a)(1) and 576 and California Rules of Court, rule 3.1324. The court may, “in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars....” (Code Civ. Proc., § 473, subd. (a).) “Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading.” (Code Civ. Proc., § 576.) “[T]he trial court has wide discretion in allowing the amendment of any pleading [citations], [and] as a matter

		of policy the ruling of the trial court in such matters will be upheld unless a manifest or gross abuse of discretion is shown.” (Melican v. Regents of University of California (2007) 151 Cal.App.4th 168, 175.) “Where no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564.) Here, Cross-Complainants seek to plead additional causes of action including Professional Negligence (Legal Malpractice), Breach of Fiduciary Duty, Libel, and Slander, in addition to the existing causes of action for Breach of Contract and Fraud. This court denied without prejudice a prior motion for leave to amend because the supporting declaration did not fully comply with California Rules of Court, rule 3.1324(b) because it did not specifically state the effect of the amendment, why it was necessary and proper, and when the facts giving rise to the amended allegations were discovered. By denying the previous motion without prejudice, the court did not reject Plaintiff/Cross-Defendant’s arguments, which are properly raised again in response to the present motion. Plaintiffs/Cross-Defendants do not make any claim that they would be prejudiced by the amendment. While Cross-Defendants contend that amendment would be futile, that argument is best addressed by way of demurrer, motion for judgment on the pleadings or other appropriate proceedings. (See Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048; Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 760.) Moving Parties to give notice.
114	Ying v. Xiong, 2024-01443462	Plaintiff Fu Ying’s motion to vacate the dismissal entered by this Court on April 6, 2026 is GRANTED pursuant to CCP §473(b), on the basis of attorney fault. Plaintiff is ordered to pay reasonable attorney’s fees of \$600 (2 hrs at \$300/hr) incurred by Defendant in traveling to and from and appearing at the trial call.

(See Wen Yao Decl. ¶¶ 5-7.) The other hours incurred could have been avoided by stipulating to set aside the dismissal, which Defendant concedes is mandatory due to attorney fault. Defendant's only issue with the motion is the amount of fees to be awarded.

Fees are due and payable to Defendant's counsel within 30 days of this order.

As previously ordered by the court, trial call for the bench trial shall be on 09/01/2026 at 8:30 a.m. in Department N14. Counsel for the parties may appear remotely.

Plaintiff to give notice.